



CHAPTER 36.

An Act to amend the Courts (Emergency Powers) Acts,
1939 to 1941, with respect to mortgages.

[22nd October 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where an application is made under the Courts (Emergency Powers) Acts, 1939 to 1941, by the mortgagee of any property for leave to exercise against the property any right or remedy arising by virtue of a default in the payment of the mortgage money or a breach of any mortgage obligation, the appropriate court may, for the purposes of the said Acts, treat any person appearing to the court to be affected by the exercise of the right or remedy as if he were the person liable to pay the mortgage money or to perform the mortgage obligation, or, as the context may require, as if he were the mortgagor, and may grant relief accordingly.

Power to grant relief in respect of mortgaged property.

(2) The foregoing subsection shall not be taken as requiring all the persons so affected to be made parties to the application, and rules made under the Courts (Emergency Powers) Act, 1939, shall make provision as to the persons who are to be made parties to any such application, and may provide that, in such cases as may be prescribed by the rules, and in particular in cases where the mortgagor has died and no person has taken out representation in respect of the property, the application may be made ex parte.

2 & 3 Geo. 6.
c. 67.

(3) This section shall apply to any application whether instituted before or after the passing of this Act, except where the leave of the court has been given unconditionally before the passing of this Act.

Amendment of
s. 1 of Courts
(Emergency
Powers) Act,
1939, and s. 26
of Liabilities
(War-time
Adjustment)
Act, 1941.
4 & 5 Geo. 6.
c. 24.

2.—(1) For the purpose of enabling the powers of the appropriate court under the Courts (Emergency Powers) Acts, 1939 to 1941, in the case of proceedings for the recovery of possession of mortgaged property, to be exercised before the institution of the proceedings instead of after the judgment or order of the court has been given or made, section one of the Courts (Emergency Powers) Act, 1939, as amended by any subsequent enactment, and section twenty-six of the Liabilities (War-time Adjustment) Act, 1941, shall be amended as follows:—

- (a) in subsection (2) of the said section one, at the end of paragraph (b), there shall be inserted the words “or institute proceedings for the recovery of possession of mortgaged property”, and in paragraph (d) of the proviso to that subsection the words “or for the recovery of possession of land” shall be omitted;
- (b) in subsection (3) of the said section one, the words “or for the recovery of possession of land by a mortgagee thereof by reason of a default in the payment of money” shall be omitted, and for the words “property other than land” there shall be substituted the words “property other than mortgaged property”;
- (c) in subsection (1) of the said section twenty-six, the words “or for the recovery of possession of land other than a dwelling-house by the mortgagee thereof by reason of a default in the payment of money” and the words “or subject to a mortgage” shall be omitted, for the words “property other than land” there shall be substituted the words “property other than mortgaged property” and for the words “tenancy or mortgage” in both places where they occur, there shall be substituted the words “or tenancy”;
- (d) in subsection (2) of the said section twenty-six, the word “or” at the end of paragraph (a), paragraph (b), and the words “or for the enforcement of the judgment or order” shall be omitted.

(2) This section shall not apply to any proceedings instituted before the passing of this Act.

Interpre-
tation.

3. In the Courts (Emergency Powers) Acts, 1939 to 1941, and this Act, the expression “mortgage” includes any charge, and the expressions “mortgagor” and “mortgagee” shall be construed accordingly, and in this Act the expression “mortgage money”

includes any part of the mortgage money and any interest thereon, and the expression "mortgage obligation" means any obligation arising under or by virtue of the mortgage, other than an obligation to pay the mortgage money.

4. This Act may be cited as the Courts (Emergency Powers) Amendment Act, 1942, and shall be construed as one with the Courts (Emergency Powers) Acts, 1939 to 1941, and this Act and those Acts may be cited together as the Courts (Emergency Powers) Acts, 1939 to 1942.

Short title,
construction
and citation.

Printed by NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament